

2018 P L C (C.S.) 889

[Lahore High Court]

Before Jawad Hassan, J

UMAR HAYAT KHAWAJA

Versus

PRESIDENT, NATIONAL BANK OF PAKISTAN and 9 others

W.P. No.7087 of 2014 decided on 13th February, 2018.

Civil service---

---Bank employee---Promotion---Estoppel, principle of---Applicability---Authorities in pursuance of order passed in an earlier constitutional petition afforded opportunity of hearing to the petitioner employee and promoted him as Senior Vice President with effect from 01-05-2006---Employee received arrears of pay accrued to him in pursuance of his promotion without any protest and objection---Petitioner had accepted his promotion with his free will and consent from 01-05-2006---Nothing was left to be claimed by the employee qua his promotion---Petitioner's contention that he was to be promoted with effect from 01-12-2002 and not from 01-05-2006 had no weight as same was hit by principle of estoppel---Employee had not disclosed that he had sought promotion through constitutional petition which was dismissed and civil petition for leave to appeal against the same was pending before the Supreme Court---Employee had not approached the Court with clean hands and was not entitled to any relief---Constitutional petition was dismissed in circumstances.

Dr. Shahnaz Nadir v. The Government of NWFP through Chief Secretary Civil Secretariat Peshawar and 3 others 2005 PLC (C.S) 88; Muhammad Pervaiz v. The Deputy Commissioner, Narowal and 8 others 2004 PLC (C.S.) 201; Azad Jammu and Kashmir Government and others v. Syed Shakir Shah and others 2002 PLC (C.S) 821 and Enmay Zed Publications (Pvt.) through Director General v. Sindh Labour Appellate Tribunal through Chairman and 2 others 2001 SCMR 565 ref.

Civil Aviation Authority through Director General and 3 others v. Mir Zulfiqar Ali and another 2016 SCMR 183; Market Committee Sahiwal v. Syed Zaigham Ali and others 2012 PLC (C.S.) 319 and State Bank of Pakistan through Governor and another v. Imtiaz Ali Khan and others 2012 SCMR 280 dist.

Secretary Economic Affairs Division, Islamabad and others v. Anwar ul Haq Ahmad and others 2013 SCMR 1687 rel.

Petitioner in Person.

Azmat Lodhi for Respondents.

JUDGMENT

JAWAD HASSAN, J.----Through the instant Constitutional petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has made the following prayers:

"i. That on acceptance of this writ petition a direction may graciously be issued to Respondent No.3 to reconsider the promotion case of the petitioner effective from 01.12.2002 in the light of Promotion Policy, 2002 and on the basis of my restored excellent ACR.

ii. That an opportunity of personal hearing be given to the petitioner as Senior Executive Vice-President/ Group Chief HRM and Admn. Has taken the charge of the Administration Group against vacant post of Group Chief now and there is a hope for decision of the Petitioner after application of mind with reason."

2. The facts succinctly revealed from the petition are that due to adverse remarks in the ACR of the Petitioner, he was not promoted on the date in which his promotion was due i.e. 01.12.2002. Feeling aggrieved thereby the Petitioner preferred an Appeal on 29.03.2005 before the Federal Service Tribunal, Islamabad (the "Tribunal") which was abated on 07.07.2006, consequently, the Petitioner filed W.P. No.8952/2006 which was withdrawn on 18.08.2008 in order to get the restoration of the abated Appeal by the Tribunal. The Tribunal dismissed the application of the Petitioner for want of jurisdiction. The Petitioner then filed second W.P. No.15856/2011 on 11.07.2011 which was disposed of with certain directions to the Respondent-Bank to decide the matter. When no exercise was done in this regard, the Petitioner filed contempt petition (Crl.Orgl. No.1487-W/2011) whereupon the concerned Respondent afforded personal hearing to the Petitioner but after repeated letters issued by the Petitioner, he was promoted w.e.f. 01.05.2006 instead of 01.12.2002. The said contempt petition was disposed of accordingly.

3. Report and parawise comments have been filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same.

4. The Petitioner contended that his promotion was due on 01.12.2002 but due to adverse remarks in his ACR his promotion was withheld which is against the law as the case of the Petitioner for promotion was to be carried out under the Promotion Policy, 2002.

5. Learned counsel for the Respondents vehemently contested the arguments advanced by the Petitioner and prayed for dismissal of the instant petition on the grounds that the Petitioner has not come to this Court with clean hands as on the one hand he has acknowledged the acceptance of his promotion from 01.05.2006 and also receipt of arrears but on the other hand seeking his promotion from 01.12.2002; that the Petitioner has concealed certain facts from this Court, as such he is not entitled to any relief; that after the order of this Court the Petitioner was afforded opportunity of hearing and promoted vide order dated 16.03.2012 w.e.f. 01.05.2006 which he accepted without any objection and protest, as such his case is hit by the principle of estoppel; that C.P.L.A. No.1253-L/2009 filed by the Petitioner before the Hon'ble Supreme Court of Pakistan is still pending adjudication; that the instant petition is hit by the principle of laches as well; that there is series of judgments of the apex Court on the point that the promotion is not a vested right of an employee, as such this petition is not maintainable. Learned counsel for the Respondents has placed reliance on the case titled Civil Aviation Authority through Director General and 3 others v. Mir Zulfiqar Ali and another (2016 SCMR 183), Market Committee Sahiwal v. Syed Zaigham Ali and others (2012 PLC (C.S.) 319), State Bank of Pakistan through Governor and another v. Imtiaz Ali Khan and

others (2012 SCMR 280) and Safdar Hussain v. Federation of Pakistan and others (W.P. No.16272/2013).

6. In rebuttal the Petitioner has also filed rejoinder contending therein that this petition is not hit by the principle of laches as well as estoppel; that it was the duty of the Respondents to promote the Petitioner as and when his promotion was due, therefore, now they are bound to promote the Petitioner from the date of his promotion and no one should be suffered from the act of others. The Petitioner has placed certain documents in support of his contentions through application. To fortify his contentions, reliance has also been placed on the case titled Dr. Shahnaz Nadir v. The Government of NWFP through Chief Secretary Civil Secretariat Peshawar and 3 others (2005 PLC (C.S) 88), Muhammad Pervaiz v. The Deputy Commissioner, Narowal and 8 others (2004 PLC (C.S.) 201), Azad Jammu and Kashmir Government and others v. Syed Shakir Shah and others (2002 PLC (C.S) 821) and Enmay Zed Publications (Pvt.) through Director General v. Sindh Labour Appellate Tribunal through Chairman and 2 others (2001 SCMR 565).

7. Arguments heard and record perused.

8. Through this petition, the Petitioner basically seeks reconsideration of his case for promotion from 01.12.2002 by the Respondent No.3 in the light of Promotion Policy, 2002 and restored ACR. The record reveals that admittedly in pursuance of order dated 11.07.2011 passed in W.P. No.15856/2011 by this Court, the Respondents afforded opportunity of hearing to the Petitioner and promoted him as Senior Vice President vide order dated 16.03.2012 w.e.f. 01.05.2006. There is also no denial of the fact that the Petitioner received arrears etc. of the pay accrued to him in pursuance of his promotion. Along with the report and parawise comments the Respondents have appended copy of acknowledgment receipts duly signed by the Petitioner regarding his promotion, receiving of arrears, salary allowances and post-retirement benefits. It is noticeable here that the said acknowledgement documents which were duly signed by the Petitioner explicitly reveal that the same were accepted without any protest or objection. Meaning thereby that the Petitioner has accepted his promotion with his free will and consent from 01.05.2006 and has also received emoluments there-against, as such nothing is left to be claimed by him qua his promotion. The Petitioner's contention at this stage that he was to be promoted w.e.f. 01.12.2002 and not from 01.05.2006 does not have any weight as the same hit by the principles of estoppel. Because the Petitioner on the one hand has enjoyed the promotion along with allied benefits without any protest and objection and on the other hand seeks further promotion from back dated. In this regard the Hon'ble Supreme Court of Pakistan has held in the case titled Secretary Economic Affairs Division, Islamabad and others v. Anwar ul Haq Ahmad and others (2013 SCMR 1687) that doctrine of estoppel meant a disability whereby a party was precluded from alleging or proving in legal proceedings that a fact was otherwise than it had been made to appear by the matter giving rise to such disability. Reliance is also placed on the case titled Province of Punjab through Secretary to the Government v. Dr. Muhammad Zafar Iqbal and 10 others (I.C.A. No.1066/2016).

9. Moreover, the report and parawise comments submitted by the Respondents reflect that the Petitioner has not disclosed in this petition that he was earlier seeking promotion under the subsequent NBP Promotion Policy for 2006 through W.P. No.12016/2006 which was dismissed vide judgment dated 12.05.2009. The Petitioner also filed C.P.L.A. No.1253-L/2009 before the Hon'ble Supreme Court of Pakistan which is reported pending adjudication. The Respondents have supported their contention with the copies of the relevant

documents which have not been denied by the Petitioner. Learned counsel for the Respondents vehemently argued that as the Petitioner has concealed certain facts from the Court, therefore, he is not entitled to any relief as he has not come to the Court with clean hands. The case laws relied upon by the Petitioner are distinguishable from the facts and circumstances of the case, as such cannot be relied upon as each and every case has its own facts and circumstances.

10. In view of what has been discussed above, I am not inclined to grant relief as sought by the Petitioner. Consequently, the instant petition stands dismissed.

ZC-U-4-L Petition dismissed.